



Lesson 9

1. Regulatory Framework for Estate Agents
2. Estate Agency Work Regulations
3. Code of Ethics & Professional Client Care
4. Code of Practice for Estate Agents
5. Dispute Resolution Schemes

SEAA has made reasonable efforts to ensure all information provided in the notes is accurate at the time of print. Do be informed this standard set of course material you have received is provided for all students attending our intakes.

* For online Zoom lessons, trainers may have their own additional slides on top of the given set for further illustration to students to aid them in their online lesson. Students will be responsible to write down, screenshot or take pictures of those additional slides/notes on their own. Those additional slides/notes will not be provided by SEAA.*

Introduction of Estate Agents Act – 22nd October 2010

Parliament



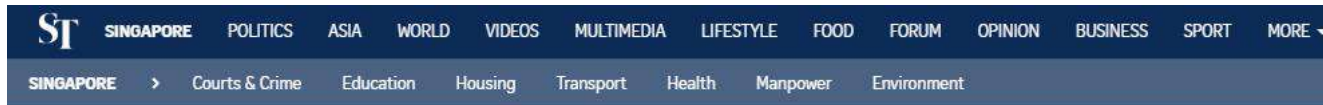
Estate Agents Act



CEA Roles

1. Regulate and control the practice of estate agents and salespersons
2. Promote the integrity and competence of estate agents and salespersons through the Code of Practice, and Code of Ethics and Professional Client Care;
3. Develop measures to equip consumers with the necessary knowledge to conduct their real estate transactions prudently and with due diligence;
4. Conduct investigation and disciplinary proceedings in relation to offences and unsatisfactory conduct or misconduct in relation to estate agency work;
5. Administer the examination and continuing professional development framework

What is the right approach to join Real Estate Agency Industry ?

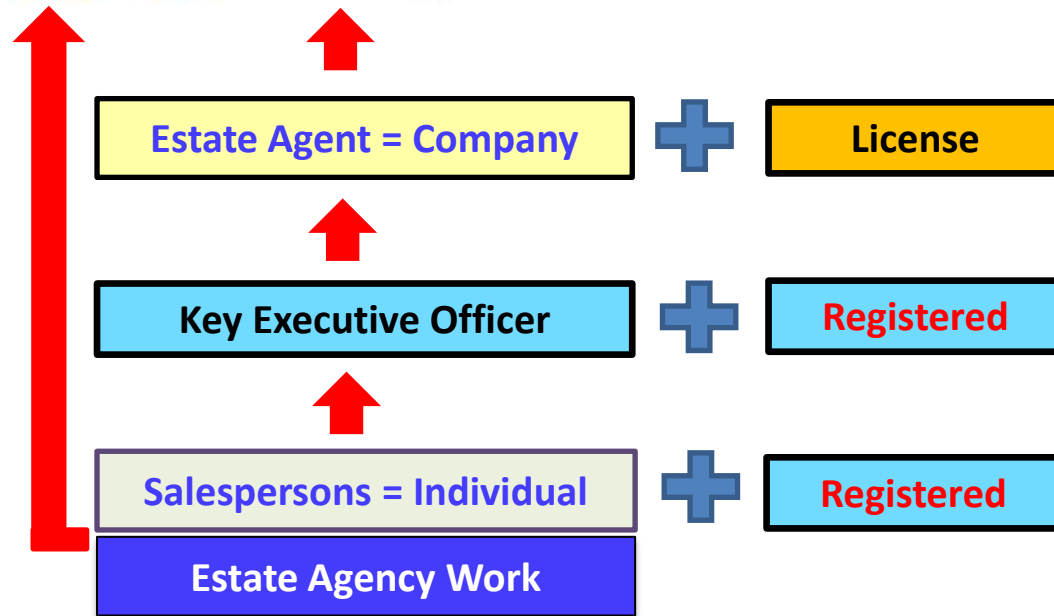


Overnight millionaire: Record penthouse deal nets 26-year-old property agent \$1.5m



What is your Answers ?

1. Commission ?
2. Quick Buck ?
3. Glamorous Lifestyle ?
4. Freedom ?
5. A Profession ?



1. Registered business with ACRA
2. Not to register a name which is similar to existing estate agents
3. Put in place systems and processes to ensure proper management of business and salespersons
4. Covered under a valid **Professional Indemnity Insurance**
5. **Not a Licensed Moneylender Business**

Criteria of Salespersons:

1. Citizenship

- 21 years old
- Singapore Citizen or Permanent Resident (**10 years**)

2. Education Qualification:

- a) Minimum **4 GCE 'O' Level passes** or Workplace Literacy & Numeracy (WPLN) Level 5 or equivalent
- b) Passed **RES examination (within 2 years)** or Possessed equivalent qualifications

3. Not a current salesperson or KEO of another estate agent.

4. Fulfil **fit and proper criteria**

5. Must not be a

- i. **licensed moneylender** or
- ii. an **employee, a director or a partner** of a licensed moneylender

Criteria of KEO:

1. 21 years old

2. Education Qualifications:

- i. Have minimum 4 GCE 'O' Level passes or
Workplace Literacy & Numeracy (WPLN) Level 5 or equivalent
- ii. Passed **REA examination** or
Possessed equivalent qualifications

3. 3 Years - Working Experience As

- i. **Salesperson**
→ **30 property transactions** within last **3 years** or
- ii. Executive director, CEO, KEO, partner or sole proprietor of Estate Agent for **3 years**

4. Not a salesperson or KEO of another estate agent.

5. Fulfil fit and proper criteria

6. Must not be a

- i. **licensed moneylender** or
- ii. an **employee, a director or a partner** of a licensed moneylender

Appointment & Duties of KEO

Section 38 – Estate Agent Act

An estate agent shall appoint a **key executive officer** and **is responsible for:**

- a) Proper administration and overall management of Estate Agent business
- b) Supervision of salespersons

Proper administration includes Standard Operating Procedures for:

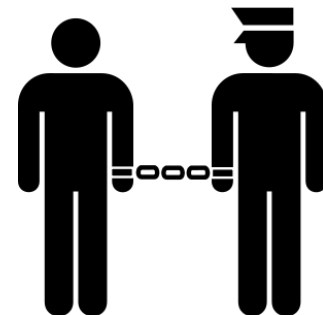
- 1. Training & supervision of salespersons.
- 2. Complaints-handling & dispute resolution.
- 3. Advertising & printing of publicity materials.
- 4. Protection of confidentiality of clients' information.
- 5. Service standards for its operations

If there is a **vacancy** of KEO by reason of **death, resignation** or **revocation**, the estate agent shall:

- 1. Notify CEA within **one week** and
- 2. Appoint another KEO within **one month**

Who must fulfil “Fit & Proper” criteria ?

1. Estate Agent
2. Key Executive Officer
3. Directors or partners of the company
4. Persons responsible for the management of the company
5. Salesperson

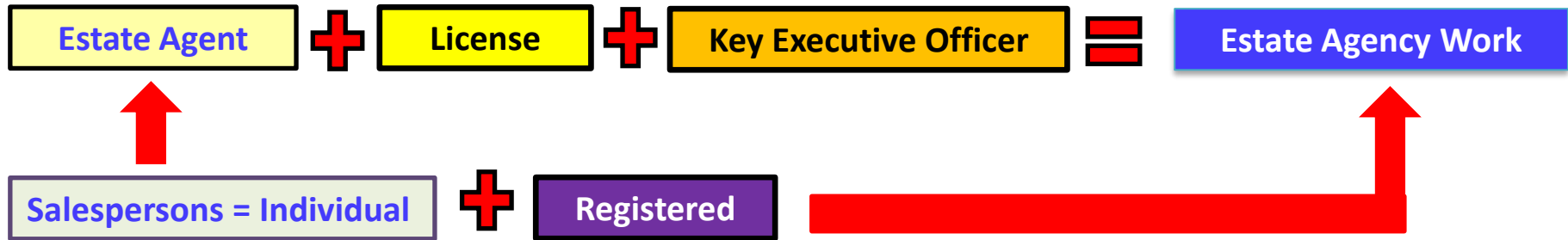


The following examples are not consider “Fit & Proper”

A person convicted of an offence under

- i. Estate Agent Act or
- ii. Involving dishonesty or fraud offence or
- iii. Adjudged fraudulent, dishonest or breach of fiduciary duties in civil proceedings or
- iv. an un-discharged bankrupt or has entered into a scheme of arrangement with his creditors.
 - Liquidation or Wind-up Order or Receivership or
- v. CEA takes the view that a person is not fit and proper after considering any other relevant facts or matters.

What is Estate Agency Work ?



Definition of Estate Agency Work

means any work done in the course of business for a client or any work done for or in expectation of any fee (whether or not in the course of business) for a client —

- a) **being work done** in relation to the introduction to the client of a third person who wishes to acquire or dispose of a property, **or to the negotiation for the acquisition or disposition of a property by the client**; or
- b) **being work done after** the introduction to the client of a third person who wishes to acquire or dispose of a property or the negotiation for the acquisition or disposition of a property by the client, in relation to the acquisition or disposition, as the case may be, of the property by the client;

Examples:

1. **Introduction to the client of a third person** who wishes to **acquire or dispose** of a property
2. **Negotiation** for the acquisition or disposition of a property by the client
3. Putting up advertisement for selling or renting out property
4. Conducting a property viewing session for buyers / tenant

Exemptions → Estate Agency Work

1. Property Owner or Purchaser (self disposition or purchasing)
2. An executor, administrator, trustee, liquidator, receiver, trustee or assignee of a bankrupt
3. An appraiser
4. Any person in connection with a mortgage or other charge on property
5. A solicitor or his/her employee **introducing to the client, third persons** who wish to acquire or dispose of a property if the solicitor or his/employee do not perform any other work that falls within the definition of “estate agency work”
6. Employee under (owner of property) employer’s instructions → Present or Past employer
7. Government or government bodies

Requirements – Continuing Professional Development

1. KEO
2. Practicing directors or partners
3. Salespersons
4. Minimum **6 CPD credits** per cycle
5. Cycle → **1 Oct 2021 to 30 Sep 2022**



6. KEO's responsibility to monitor salespersons CPD requirement

7. New salesperson is exempted from CPD requirement for 1st CPD cycle.

What happens salesperson leave real estate agency ?

Less than 2 years	More than 2 years
Fulfil CPD credits	Retake RES / REA exams

Note: CEA's Guidelines

- 1 CPD credit for each contact hour of formal classroom learning
- subject to a [cap of 2 credits per day](#) for each activity.

12
Training
Hours

**Structured
Learning (SL)**

4
Training
Hours

**Self-directed
Learning (SDL)**

*Including 4 training hours of Prescribed Essentials **NEW**

Professional Competencies (PC)

- Laws and Regulations
- Property Markets
- Related Real Estate Knowledge

Courses Accredited by CEA

Generic Competencies Plus (GC Plus) **NEW**

- SkillsFuture Singapore 16 Critical Core Skills
- Knowledge and Skills related to Estate Agency Work **NEW**

Course Attendance Approved by Agent's KEO

12 SL Training Hours + 4 SDL Training Hours = 16 Training Hours
From 1 October 2025

Continuing Professional Development Course Structure

Professional Competencies 4 Professional Credits		
Laws and Regulations	Property Markets	Other Real Estate Knowledge
Estate Agents Act	Residential	Sustainable Living Environment
Regulations & Guidelines	Commercial Industrial	Appreciation of Other real estate knowledge
Other Laws & Regulations	Foreign	

Generic Competencies

2 Generic Credits

16 Critical Core Skills



Building
Inclusivity



Collaboration



Communication



Creative
Thinking



Customer
Orientation



Developing
People



Influence



Adaptability



Decision
Making



Problem
Solving



Sense
Making



Transdisciplinary
Thinking

INTERACTING WITH
OTHERS

SKILLS TO
BUILD SKILLS



Digital
Fluency



Global
Perspective



Learning
Agility



Self
Management

THINKING
CRITICALLY

STAYING
RELEVANT

Salesperson Registration granted for:	Registration Fee
A full calendar year, or part of a calendar year starting on or before 30 June and ending on 31 December	\$230
Part of a calendar year starting after 30 June and ending on 31 December	\$115

Application fee to register or renew of salespersons is \$50

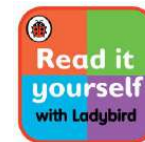
Fees – Estate Agents

1. Application fee for a new licence and renewal of licence is **\$120** per estate agent licence
2. Annual License Fees → Depending on type of business (Refer to next slide)

NOTE:

KEO collects all the registration or renewal fee on behalf of salespersons and transfer to CEA

Size of EA (No of RESs)	Annual Licence Fee [#] (GST exempt) (for licence validity till 31 Dec 2023)	Annual Licence Fee [#] (GST exempt) (for licence validity from 1 Jan 2024)
1 to 10	\$330	\$330
11 to 30	\$660	\$660
31 to 50	\$1,100	\$1,100
51 to 500	\$2,200	\$2,200
501 to 1000	\$3,300	\$5,000
1,001 to 2,000	\$4,400	\$10,000
2,001 to 3,000	\$5,500	\$15,000
3,001 to 4,000	\$6,600	\$20,000
4,001 to 5,000	\$7,700	\$25,000
5,001 to 6,000	\$8,800	\$30,000
6,001 to 7,000	\$9,900	\$35,000
7,001 to 8,000	\$11,000	\$40,000
Every additional 1,000 RESs (or part of 1,000 RES)	Increase of \$1,100	Increase of \$5,000



Size of EA (No of RESs)	Annual Licence Fee* (GST exempt) (for licence validity till 31 Dec 2023)	Annual Licence Fee* (GST exempt) (for licence validity from 1 Jan 2024)
1 to 10	\$330 + (\$230 for each practising partner)	\$330 + (\$230 for each practising partner)
11 to 30	\$660 + (\$230 for each practising partner)	\$660 + (\$230 for each practising partner)
31 to 50	\$1,100 + (\$230 for each practising partner)	\$1,100 + (\$230 for each practising partner)
51 to 500	\$2,200 + (\$230 for each practising partner)	\$2,200 + (\$230 for each practising partner)
501 to 1000	\$3,300 + (\$230 for each practising partner)	\$5,000 + (\$230 for each practising partner)
1,001 to 2,000	\$4,400 + (\$230 for each practising partner)	\$10,000 + (\$230 for each practising partner)
2,001 to 3,000	\$5,500 + (\$230 for each practising partner)	\$15,000 + (\$230 for each practising partner)
3,001 to 4,000	\$6,600 + (\$230 for each practising partner)	\$20,000 + (\$230 for each practising partner)
4,001 to 5,000	\$7,700 + (\$230 for each practising partner)	\$25,000 + (\$230 for each practising partner)
5,001 to 6,000	\$8,800 + (\$230 for each practising partner)	\$30,000 + (\$230 for each practising partner)
6,001 to 7,000	\$9,900 + (\$230 for each practising partner)	\$35,000 + (\$230 for each practising partner)
7,001 to 8,000	\$11,000 + (\$230 for each practising partner)	\$40,000 + (\$230 for each practising partner)
Every additional 1,000 RESs (or part of 1,000 RES)	Increase of \$1,100 + (\$230 for each practising partner)	Increase of \$5,000 + (\$230 for each practising partner)

Professional Indemnity Insurances (EA, KEO & Salespersons)

Category	Minimum Indemnity Limit*	Minimum Sub-limit for each salesperson	Maximum Deductible (in respect of each claim against entity)	Maximum Deductible (in respect of each claim against salesperson)
Sole-Proprietorship with only 1 salesperson	\$100,000	\$100,000	\$5,000	\$5,000
Non-sole-proprietorships with 1-10 salespersons or Sole-proprietorship with 2-10 salespersons	\$200,000	\$100,000	\$5,000	\$5,000
Estate agent with 11-30 salespersons	\$300,000	\$100,000	\$5,000	\$5,000
Estate agent with 31-50 salespersons	\$400,000	\$100,000	\$5,000	\$5,000
Estate agent with 51-500 salespersons	\$600,000	\$100,000	\$10,000	\$5,000
Estate agent with >500 salespersons	\$1 million	\$100,000	\$20,000	\$5,000

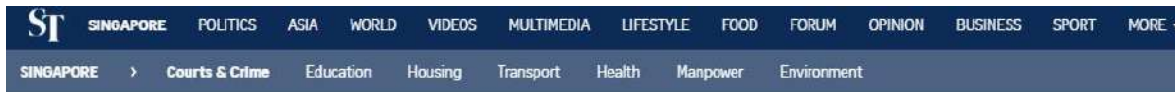


Estate Agent Act - Violations and Penalties

1. S28(2) – EAA - Estate agent operating without licence

An Offence and

- a) \$75,000 or jail term not exceeding 3 years or
- b) Both fines and jail term
- c) Continuing offence after conviction with a further fine not exceeding \$7,500 per day.



Man fined \$72,000 for conducting estate agency work without CEA registration



Lim Ruiwen posted nine advertisements for the rental of Housing Board flats and private properties on public online property portals between January and March 2017 despite being unregistered with the Council for Estate Agencies. PHOTO: ST FILE

PUBLISHED APR 3, 2019, 9:06 PM SGT

Estate Agent Act - Violations and Penalties

2. S29(3) – EAA - **Salesperson operating without registration**
An Offence and
a) **\$25,000** or Jail term not exceeding **12 months** or
b) Both fines and jail term

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Man fined S\$23,000 for illegal estate agency work



Published 20 FEBRUARY, 2017 UPDATED 20 FEBRUARY, 2017

f t e w in

Estate Agent Act - Violations and Penalties



3. S39(2) EAA - Estate Agent employs / appoints non registered salesperson
An Offence and
 - a) \$25,000 or Jail term not exceeding 12 months or
 - b) Both Fines and Jail Term
 - c) Continuing offence after conviction with a further fine not exceeding \$2,500 per day
4. S41(3) EAA - Salesperson operating without written agreement with estate agent
An Offence and
 - a) \$25,000 or Jail term not exceeding 12 months or
 - b) Both Fines and Jail Term
 - c) Continuing offence after conviction with a further fine not exceeding \$2,500 per day
5. S40(3) EAA - Salesperson making false representation to the effect that the salesperson is employed by or authorised to act as a salesperson for any specified estate agent.
 - Fine not exceeding \$5,000
6. S33(6) EAA - Submitting false documents or makes a statement which is false or misleading in any material particular in any application for grant or renewal of a licence.
An Offence and
 - a) \$50,000 or Jail term not exceeding 3 years or
 - b) Both Fines and Jail Term

Estate Agent Act - Violations and Penalties

7. Submitting false documents or makes a statement which is false or misleading in any material particular in any application for registration or renewal of registration. (Offence EAA - 34(7))
 - Fine not exceeding \$50,000 or
 - Jail term not exceeding 3 years or to both
8. Salesperson to Act for One Estate Agent at any One Time (Offence EAA - S40)
 - A salesperson shall not at any one time act as a salesperson for more than one estate agent.
 - Any salesperson who makes any false representation (whether verbally or in writing or by conduct) to any person to the effect that the salesperson is employed by or authorised to act as a salesperson for any specified estate agent shall be guilty of an offence and shall be liable on conviction to a fine not exceeding \$5,000.

Estate Agent
Acts

Estate Agents (Estate Agency Work) Regulations 2010

Subsidiary Legislation of Estate Agent Act

PART II

Part III

**Code of Ethics
and Professional
Client Care**

**Code of Practice
for Estate
Agents**

**Regulation of
Estate Agency
Work**

Regulation Of Estate Agency Work

1. Regulation 5
No dual representation
2. Regulation 6
No referrals to moneylenders
3. Regulation 7
No holding of transaction monies
4. Regulation 8
Use of Council symbols and representations
5. Regulation 9
Display of estate agent card

No Dual Representation

1. No salesperson or estate agent who is a natural person shall, in respect of the **same property**, have as **clients both** vendor and purchaser or both landlord and tenant.
2. Regardless of the consent or agreement of the client or of any or all the parties to the relevant transaction

An Offence **and**

1. **\$25,000 or** jail term up to **12 months**
2. **Both fine and imprisonment**



3. This means you can only act for **ONE** client in a property transaction.
4. By representing only client in a property transaction, salesperson are striving towards client-centricity by taking care of their interests.

5. No Conflict of Interests

Property agent gets jail for deceiving buyer and seller of HDB flat to receive double commission



HDB flats in Singapore. (Photo: CNA/Calvin Oh)



Davina Tham

09 Jun 2022 07:10PM

(Updated: 09 Jun 2022 07:11PM)



SINGAPORE: A property agent was sentenced to 23 weeks' jail and fined S\$11,000 on Thursday (Jun 9) for deceiving both the buyer and seller of a Housing and Development Board (HDB) flat to receive double the amount of commission.

Toh Yew Hock, 52, pleaded guilty earlier this month to one charge of dual representation under the Estate Agents (Estate Agency Work) Regulations, and one

MEDIA RELEASE

28 MARCH 2013

CEA'S FIRST PROSECUTION CASE AGAINST SALESPERSON FOR DUAL REPRESENTATION

The Council for Estate Agencies (CEA) charged a former real estate salesperson Nangoi Demelza Carmelita in Court today at 9am with eight charges for allegedly representing both landlords and tenants in the same property transaction (4 charges), handling money for the landlords and tenants (3 charges), and for not attending before a CEA inspector as required (1 charge).

2. Nangoi (29 years old, Singaporean female) was a registered salesperson with a licensed estate agent, SPR Realty Pte Ltd when she allegedly committed the offences. She is the first salesperson to be prosecuted by CEA for dual representation-related offences.

3. Under the Estate Agents Act, it is an offence for estate agents and salespersons to be appointed by both tenants/buyers and landlords/sellers for the same property transaction. They are also prohibited from holding or handling any money for or on behalf of any party in relation to the sale and purchase of any property situated in Singapore and the lease of HDB property. CEA's charges against Nangoi are listed in [Annex A](#).



1. Can two salespersons from the same estate agent act for the different parties in the same transaction i.e. one for the tenant/buyer and the other for the landlord/seller, and collect a fee from the party that they each represent?

Two salespersons from the same estate agent can each represent a different party in the same transaction.

In such a situation, the salespersons must declare to their respective clients in writing that they are from the same estate agent and obtain their clients' consent as soon as possible before accepting an appointment by or continuing to act for the clients.

In addition, if either salesperson is collecting an overriding fee from or is otherwise receiving a part of the other salesperson's commission, the receiving salesperson must disclose this in writing to his client as a potential conflict of interest.

Salespersons should note that under Clause 1.8.3 of the Professional Service Manual, a salesperson cannot collect commission from his client and another co-broke fee from the other salesperson representing the other party in the same transaction.



2. If a salesperson introduces a buyer to a developer, can he collect a fee from the developer?

A salesperson may collect a fee from the developer in these two circumstances:

- a) The salesperson is not representing the buyer
- b) The salesperson is representing the buyer but not the developer and collects a fee through a commercial agreement with the developer.

In both scenarios, the salesperson must not also collect any fees or commission from the buyer.

3. Will a salesperson acting for an absentee landlord be dual representing if both the tenant and landlord use him to renew the lease?

Yes, this will be dual representation. The salesperson can only represent either the landlord or the tenant in the renewal of the lease. He cannot act for both.

FAQs – Dual Representation ?



4. If the buyer and seller know each other and appoint the same salesperson to handle the paperwork for them, is this considered as dual representation?

The same salesperson cannot be appointed by both buyer and seller in the same transaction. He can only act for one party.

However, a salesperson who is representing one party can help the other party in the transaction with the paperwork as long as it is clear to all parties that he is not acting for the other party, and he has obtained the consent of his client. Assisting in the paperwork for the other party could expedite the transaction for his client. However, the salesperson cannot collect a fee from the other party for help rendered in handling the paperwork.

5. If a salesperson collects a management fee from the landlord while having the tenant as his client, is this considered as dual representation?

Dual representation is prohibited in respect of estate agency work. The definition of estate agency work can be found in section 3 of the Estate Agents Act.

If the agreement between the salesperson and the landlord for the management of the property does not provide for the conduct of estate agency work for the landlord and the salesperson does not conduct estate agency work for the landlord as his client, the salesperson may act for the tenant and manage the property for the landlord at the same time.

However, the salesperson must declare this conflict of interest in writing to the tenant and get the tenant's consent before he can act or continue to act for the tenant. For transparency, the salesperson should also inform the landlord that he is representing the tenant.

FAQs – Dual Representation ?

6. A salesperson is marketing the property of a seller and a direct buyer comes along to make an offer. Will the salesperson be allowed to do the paperwork for the direct buyer if he is not collecting any commission/fees from him?

The salesperson can handle the paperwork for the buyer who does not have a salesperson as long as he obtains his client's consent first, and does not collect a commission/fee from the buyer. This would help his client in closing the transaction quickly.

If the salesperson is assisting a buyer with the paperwork in a HDB transaction, he must ensure that the correct forms are used (e.g. the correct Resale Checklist for buyers who do not engage salespersons).



FAQs – Dual Representation ?



7. If a party to the transaction insists on giving the salesperson representing the other party in the same transaction an "ang bao" out of goodwill, will this be considered as dual representation?

A salesperson can only act for one party in a property transaction. If the salesperson collects commission from his client and **intends to collect any other payment, such as a red packet or "ang bao", from the other party in the transaction, he may violate the prohibition on dual representation depending on the actual circumstances.**

Estate agents and salespersons should note that paragraph 7(4) of the Code of Ethics and Professional Client Care prohibits salespersons from soliciting for the payment of any reward, commission or fee from any person who did not engage their services.



No Referrals to Moneylenders

No estate agent or salesperson shall:

- a) introduce, refer or recommend a client to any moneylender or otherwise **suggest** the use of the services of any moneylender; **or**
- b) receive any commission, reward, fee, payment or **other benefit** whatsoever from any moneylender in respect of any moneylending transaction.

An Offence and

1. **\$25,000** or jail term up to **12 months**.
2. Both fine and imprisonment

Refer to Section 5.3 Professional Service Manual

Estate agent or salesperson **shall not lend or advance money** to or for their clients with the exception of the **payment of rental stamp duties** before reimbursement by the client.



Real estate salesperson charged in court for moneylender referral and handling monies

PUBLISHED MAY 29, 2013, 6:41 PM SGT



Hoe Pei Shan

The Council for Estate Agencies (CEA) charged real estate salesperson Mustafa Kamal Bin Seri in court on Wednesday for allegedly receiving payment from a licensed moneylender for the loans his clients took and handling transaction monies for his clients.

Under the Estate Agents Act, it is an offence for estate agents and salespersons to introduce the services of any moneylender to their clients and to receive commissions, rewards, fees, payments or any benefits from any moneylender such transactions.

Estate agents and salespersons are also prohibited from holding or handling any money for or on behalf of any party in relation to the sale and purchase of any property situated in Singapore.



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TODAY

WEDNESDAY 01 APRIL 2020

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Five weeks' jail for ex-property agent who forged stamp certificate



Reuters file photo

Published 30 NOVEMBER, 2015 UPDATED 01 DECEMBER, 2015



Property agent jailed and fined for operating an illegal moneylending business



Tan Tee Theng, 40 who is also a shareholder of Mindlink Consultants, had earned at least \$123,000 interest from the total loans of \$229,000. PHOTO: ST FILE

PUBLISHED JUL 3, 2015, 5:21 PM SGT



Elena Chong Court Correspondent

SINGAPORE - A rogue property agent was jailed for 40 months and fined \$240,000 on Friday for doling out unlicensed loans to flat sellers and charging them exorbitant interest rates.

Tan Tee Theng, 40, who is also a shareholder of Mindlink Consultants, had earned at least \$123,000 interest from the total loans of \$229,000.

No Referrals to Moneylenders

Property agent charged with unlicensed moneylending



Property agent Kenny Tay Ann Siang, 40, has been charged with three counts of unlicensed moneylending. -- ST PHOTO: WONG KWAI CHOW

PUBLISHED APR 2, 2015, 3:40 PM SGT



Danson Cheong

SINGAPORE - A property agent was charged in court with three counts of unlicensed moneylending on Thursday.

Kenny Tay Ann Siang, 40, stood accused of giving loans of \$30,000 to three people in 2011 and 2012, charging them interest in excess of 230 per cent.



No Holding of Transaction Monies

No estate agent or salesperson **shall hold or handle any money for or on behalf of any party** in relation to any of the following property transactions:

- a) the sale or purchase of any property situated in Singapore; and
- b) the lease of HDB property.

An Offence and

1. **\$10,000** or jail term up to **6 months**.
2. Both fine and imprisonment
3. Continuing offence after conviction with a further fine not exceeding **\$500 per day**

The above shall not prevent any estate agent or salesperson from:

- a) delivering on behalf of any party a **crossed account payee cheque or cashier's order** drawn in favour of another party to the transaction;
- or
- b) receiving such **remuneration or reimbursement** in relation to the management, repair or renovation of the property as the estate agent or salesperson may be entitled to under **a written contract or authorisation**.

Ex-property agent jailed for defrauding clients and cheating own family in kidnapping scam



PUBLISHED MAR 1, 2019, 1:06 AM SGT



Shaffiq Alkhatib Court Correspondent

SINGAPORE - To earn a quick buck, a property agent defrauded his clients through a range of methods such as forging their signatures on tenancy agreements and ensuring that the rent they paid was transferred to his own bank account.

Joe Tan Kia Hian, who was a marketing director at real estate firm Huttons Asia, then fled to Malaysia and duped his family into handing over cash after claiming that he had been kidnapped. His offences involved \$88,200 and he has been sacked by the company.

Tan, 41, was jailed for 1 year and 11 months on Thursday (Feb 28).

Ex-property agent jailed for two years for running rental scam and committing theft

PUBLISHED FEB 13, 2014, 1:14 PM SGT



Khushwant Singh

A property agent not only cheated seven foreigners of a total of \$32,400 in a rental scam, he also stole a necklace and a watch from his Chinese national girlfriend. Jim Tan Kuan Hui, 41, now unemployed, pleaded guilty on Thursday in a district court to theft and cheating and was jailed for two years.

In December 2010 and February 2011, he was working for the Asia Group property firm. Jim Tan hatched a plan with Jeffrey Tan Chwee Guan, 38, and another man named only as Ah Lai, to "rent" out Jeffrey Tan's housing board flat in Jurong East. The two Tans would collect deposits and advance rental fees from people who are interested and then cook up excuses on why the flat was unavailable to them.

In one case in December 2010, Mr Jameel Adnan Ahmed, a 34-year-old Pakistani, agreed to rent the Jurong East flat for \$1,000 a month. He then handed over a total of \$7,000 as agent's commission and advance rental. Some weeks later, Jim Tan told Mr Ahmed that he could not move in as he claimed that the flat had been vandalised with paint and the police had sealed it for investigations.

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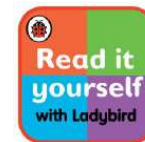
Property agent fined S\$10,000 for using client's money meant for home purchase to settle his own debts

By KENNETH CHENG



TODAY file photo

Published 14 SEPTEMBER, 2016 UPDATED 14 SEPTEMBER, 2016



Former property agent found guilty of handling \$93,000 of client's cash, the largest sum involved in such cases



Goh Chung Yong was fined \$10,000, and will be jailed for seven weeks if he does not pay the fine. ST PHOTO: WONG KWAI CHOW

PUBLISHED SEP 14, 2016, 4:57 PM SGT



Annabeth Leow

SINGAPORE - A former property agent was convicted on Wednesday (Sept 14) for handling \$93,000 of a client's transaction money - an offence under the Estate Agents Act.

Goh Chung Yong, 48, was fined \$10,000, and will be jailed for seven weeks if he does not pay the fine.

Among the 17 property agents - including Goh - who have been prosecuted since 2010, this is the largest sum involved.

Ex-property agent pocketed over \$132,000 of client's money

PUBLISHED JAN 31, 2020, 5:00 AM SGT



Shafiq Alkhatib Court Correspondent

A property agent engaged by a client who wanted to buy a condominium unit in Singapore ended up misappropriating more than \$132,000 of her money.

Lim Yi Han, who used to work for Huttons Asia, then used his ill-gotten gains to renovate his home and buy items such as furniture.

A search on the Council for Estate Agencies' public register did not reveal any information.

FAQs - Transaction Monies



1. Can estate agents or salespersons use their own money to pay
 - i. the option fee for the purchase of property ?
 - ii. to place deposits for tenants of HDB leases ?

Estate agents or salespersons are not allowed to use their own money to pay for the above

2. Can my property agent collect rental in cash for my property while I am overseas?

Salespersons can help landlords collect rental in cash only when they have a written authorisation from, or management contract with the landlord. This only applies for private property rentals. Salespersons cannot handle monies for HDB rentals.

3. Can my property agent pay for the bills and repairs to my apartment in cash, deduct the amount from the rent and remit the remaining money to me ?

Salespersons can help landlords pay for the bills and repairs in cash only when they have a written authorisation from, or management contract with the landlord. This only applies for private property rentals. Salespersons cannot handle such monies for HDB rentals.

FAQs - Transaction Monies

4. What are the monies in property transaction that agent can handle ?

 BUY/SELL	 FOR RENT	 FOR RENT
SALE AND PURCHASE OF ALL PROPERTIES IN SINGAPORE	LEASE OF PRIVATE PROPERTY	LEASE OF HDB PROPERTY
 Valuation fees  Commission	 Valuation fees (if applicable)  Commission  Stamp duty fees  Rental deposits  Monthly rental	 Commission  Stamp duty fees

Use of Council Symbols & Representations

Estate Agent, Salesperson or any other person **shall not**:

1. Use any name, symbol, mark or representation that is identical to or which incorporates or resembles that of the Council; or
2. Use Internet domain names, World Wide Web addresses or email addresses that incorporate characters, initials or representations of the Council which may deceive or cause confusion.

An Offence and

1. **\$10,000** or jail term up to **6 months**.
2. Both fine and imprisonment
3. Continuing offence after conviction with a further fine not exceeding **\$500 per day**



Display of Estate Agent Card



Salespersons and estate agents must display estate agent card when carrying out **estate agency work**.



An Offence and

- 1. \$10,000** or jail term up to **6 months**.
- 2. Both fine and imprisonment**

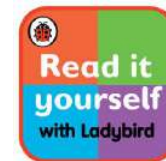
The salesperson shall show the card to **any person** who may reasonably request to see the card and allow such person to record any information from the card

Public Register

What is the Purpose of the Public Register of Estate Agents and Salespersons?

The public can check whether:

- a real estate agent is a licensed estate agent;
- a person is a registered salesperson;
- a real estate agent or salesperson has been disciplined by the Council within the **last two years**;
- any **awards** have been conferred by the Council; and
- a salesperson has closed **HDB and private residential** resale transactions in the last **24 months**.

[Salesperson](#)[Estate Agent](#)

Search the Public Register

Salesperson's Name/Business Name

Salesperson's Name

Salesperson's Registration Number

Salesperson's Registration Number

Salesperson's Contact Number

Salesperson's Contact Number

Estate Agent's Name

Estate Agent's Name

Search

Reset

Registration No.

[Salesperson](#)[HDB Resale Records](#)[HDB Rental Records](#)[Private Rental Records](#)[Private Sale Records](#)

Alias/Business Name

Registration Start Date

08/07/2015

Registration End Date

31/12/2021

Awards

Award 1 : SEAA's Salespersons Achievement Award (Platinum) 2020

Estate Agent Name

Licence No.

L3008022J

Disciplinary Actions

Received the following disciplinary action on 30 Jul 2021:

Suspension of 2 months and financial penalty of \$1,000 for a breach of paragraph 5(1) of the Code of Ethics and Professional Client Care, in the First Schedule of the Estate Agents (Estate Agency Work) Regulations 2010, for failing to conduct his business and work with due diligence and care, by failing to ensure that one of the intended buyers of the Property was of or above the minimum legal age to be a registered legal owner of the Property when he inserted the details of both buyers into an option to purchase (OTP) in respect of the Property and submitted the OTP to the Property developer, causing the OTP to have no effect pursuant to section 35(4)(a) of the Civil Law Act.

The suspension period above was ordered to take effect from 2 Aug 2021.

Code of Ethics & Professional Client Care (CEPCC)

Code of Practice For Estate Agents (COP)

1. Sets the standard of estate agency work performance.
2. All Estate Agents & salespersons must observe & comply.
3. Failure to observe any of these codes or any applicable law may constitute **unsatisfactory professional conduct**.
4. An offer, attempt, inducement or instigation to do anything that would breach the Codes if fully executed or completed is also a breach of the Codes
5. A breach in any of Codes may result in:
 - a) Disciplinary action being taken against EA / RES concerned.
 - b) Imposition of sanctions including financial penalties (**not exceeding \$100,000**), demerit points and suspension or revocation of the licence / registration.

SINGAPORE

Property agent fined, suspended for breaching code of ethics

✓ This article is more than 12 months old

Property agent fined \$6,000, suspended 7 months. He did not take due care for seller with dementia.



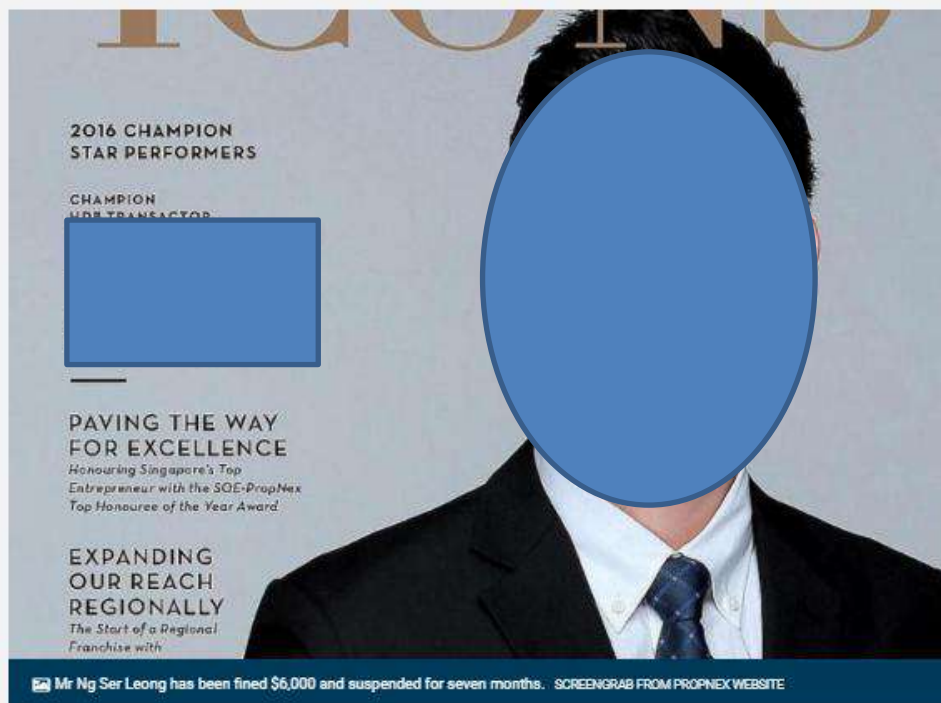
David Sun

© Sep 23, 2017 06:00 am



In a landmark case, a property agent has been fined and suspended for failing to conduct work with due diligence and care for a vulnerable client.

Mr Ng Ser Leong, 44, whose registered name with the Council for Estate Agents (CEA) is Power James, had failed to ascertain if the elderly female co-owner of a Housing Board flat was fully aware of the consequences of the sale despite being informed that she was "senile".



Code of Ethics & Professional Client Care

Items		
1	Knowledge of and compliance with applicable laws, practice circulars and guidelines	
2	Due diligence & compliance with law and statutory requirements	
3	General duty to clients and public	
4	Not to bring discredit or disrepute to real estate industry	
5	Duty to clients in relation to signing of documents	
6	Obligations in respect of agreements	
7	Conveying offers, counter offers, etc.	(Read the section in PSM)
8	Interpretation or translation if necessary	
9	Duties in respect of advertisements	(Cover in Lesson 11)
10	Duty to avoid conflict of interest	(Read the section in PSM)
11	Recommending professional advice where appropriate	(Read the section in PSM)
12	Safeguarding confidential information	

CEPCC - Knowledge of and compliance with applicable laws, practice circulars & guidelines

Estate Agents and salespersons must have the following **knowledge** to perform their work :

1. Conversant and comply Estate Agent Act, Codes & Regulations, policies, practice circular and guidelines
2. Relevant laws, rules and regulations to property transaction
3. Procedures for property transactions and type of forms or document used
4. HDB policies, rules, regulations and procedures before undertake work on HDB flat transaction
5. Latest essential facts, matters and development in property market

CEPCC - Due diligence & compliance with law and statutory requirements

Estate agents and salespersons shall conduct business and work with **due diligence, despatch# & care**, and in compliance with all laws including statutory and regulatory requirements, and practice circulars and guidelines includes:

1. Shall not do or attempt to do anything that infringes, or which may directly or indirectly lead to the infringement by any person of any law; and
2. Must take all reasonable precautions and acts to ensure that no law is infringed by any person.

***Refers to the care that a reasonable person exercises to avoid harm to other persons or their property**

Term “with despatch” means “as soon and as fast as possible”



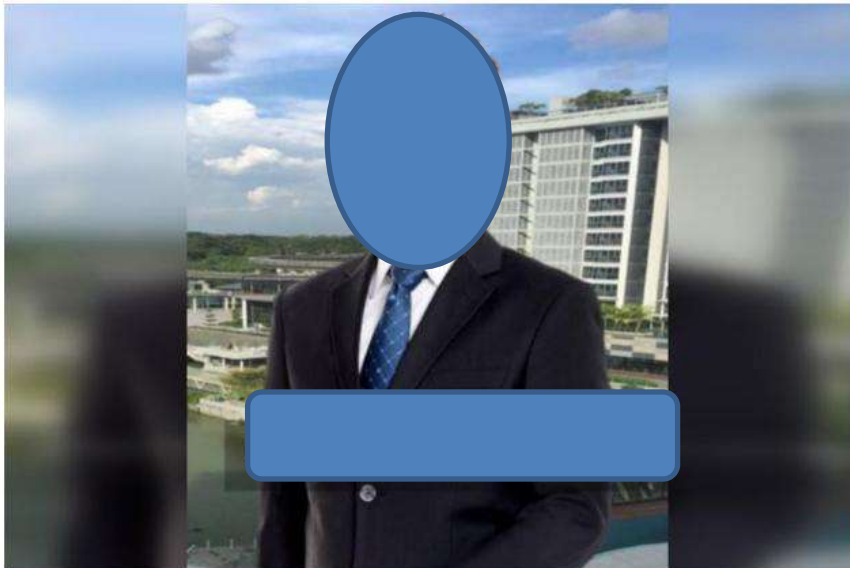
CEPCC - General duty to clients and public

1. Estate agents and salespersons shall
 - render professional & conscientious service to clients and shall act with **honesty, fidelity and integrity**.
 - must act **ethically, honestly, fairly** and in a reasonable manner towards all other persons.
2. Estate agents and salespersons must
 - a) **act according to client's instructions**, protect & promote interests of the client and unaffected by their interests
 - b) **not mislead**, provide false information or **misrepresent** any law or fact to client
 - c) keep client informed of any material or relevant development or issue in respect of the property
 - d) **not withhold** any relevant fact or information from the client; and
 - e) must not act against the interests of the client in any manner, including **collaborating in any form** or manner with any other person

Unacceptable examples:

- (i) Collaborate, induce or attempt to induce the client or any other person to engage in **illegal, dishonest or unethical** practices; *Influencing valuers → price*
- (ii) Overstate or convey a false impression of any relevant information;

Property agent faked offers in bid to get bigger commission



Real estate agent James Ethan Ngu Ping Chuan has been fined \$30,000 and suspended for 12 months. PHOTO: PROPERTYGURU

PUBLISHED OCT 22, 2019, 5:00 AM SGT



Clement Yong

A property agent has been fined \$30,000 and suspended for 12 months for faking offers in a private property transaction to get a bigger commission for himself at the expense of his client.



SINGAPORE

Property agent fined for collecting additional commissions of more than S\$50,000

Singapore

Property agent fined for collecting additional commissions of more than S\$50,000



(Photo: Unsplash/Tierra Mallorca)

SINGAPORE: A property agent has been fined S\$27,000 for altering lease agreements to collect additional commissions, the Council for Estate Agencies (CEA) said in a statement on Monday (Dec 23).

CEPCC - Not to bring discredit or disrepute to real estate industry

1. Estate agents and salespersons shall not do anything that may bring discredit or disrepute to the estate agency industry.

Among other things, that estate agents and salespersons:

- (a) must not do anything that may be **fraudulent, dishonest, deceitful or misleading**;
 - (b) must not engage in **touting**; and
 - (c) must not use **threatening** or **harassing tactics** or apply **unreasonable or improper pressure**.
2. Any opinion that is rendered by an estate agent or a salesperson to the client or any other person shall be justifiable by reference to verifiable facts and shall be given with strict professional integrity, objectivity and courtesy.
 3. Estate agents and salespersons must not solicit for the payment of any reward, commission or fee from any person who did not engage their services.

Property agent jailed four weeks for punching and kicking motorist in car park row



PUBLISHED APR 20, 2015, 2:11 PM SGT



Amir Hussein

SINGAPORE - A property agent was jailed for four weeks on Monday for punching and kicking another motorist in a road rage incident.

THE STRAITS TIMES

Property agent jailed 28 weeks for maid abuse



Khoo Mee Choo hit, kicked and pinched her maid. She also punched her head and pulled her hair. PHOTO: ST FILE

PUBLISHED DEC 4, 2018, 5:00 AM SGT



Shafiq Alkhadib Court Correspondent

A real estate agent assaulted her mother's Indonesian maid less than one month after she started working in the household and repeatedly abused her

CEPCC - Duty to clients in relation to signing of documents

CEPCC - Obligations in respect of agreements

CEPCC - Interpretation or translation if necessary

PSM 1.8 – Agency Agreement

PSM 2.4 – Signing of Option to Purchase / Sales & Purchase Agreement

1. Give client **sufficient time** to read any document **before** asking or allowing the client to **sign the form or document**.
2. Before signing any document → must **explain the meaning and consequences** of the provisions of document.
3. Any doubt in relation to document → must inform the client
→ Advise client to **seek appropriate professionals advice**
4. A copy of document given to every client immediately or as soon as possible after signing.
5. Agreements concerning financial obligations and commitments in respect of any transaction are in **writing and record the exact agreement** between the parties concerned
6. Procure **all signatures** of joint vendors, landlords, buyers or tenants.
7. Must not ask anyone to sign an agreement in which essential such as the property address, price, dates, names, and commission payable have been omitted or the relevant space for such terms or information is left blank or unfilled.

CEPCC - Duty to clients in relation to signing of documents

CEPCC - Obligations in respect of agreements

CEPCC - Interpretation or translation if necessary

PSM 1.8 – Agency Agreement

PSM 2.4 – Signing of Option to Purchase / Sales & Purchase Agreement

8. Agency Agreement

- Commission Clause
- Exclusive / Non Exclusive Agreement
- Exclusive Period – E.g. 3 months maximum
- Expected Selling Price / Rent
- Disclosure Requirement
- Co-broke clause
- Additional Terms

9. An estate agent or salesperson shall ensure that any information or explanation is conveyed to the client [in the language or dialect that the client understands](#).

PSM 2.4 – Signing of Option to Purchase / Sales & Purchase Agreement

10. Signing of Contract

- Critical Stage → Legally binding for Seller & Buyer
- Salespersons must
 - i. Familiar with Terms of Contract
 - ii. Explain Financial and Legal Implications of contract
 - iii. Exercise due **diligences checks on all matters** towards the contract

Case Study:

A buyer handed over option money that was more than the required amount but the transaction was aborted and the mentioned amount was withheld by the seller. Both the buyer's and the seller's salespersons did not check the amount indicated on the cheque before it was handed over by the buyer to the seller. Both salespersons were in breach of their duty and should have checked the amount indicated on the cheque.

CEPCC - Safeguarding confidential information

1. Estate Agent / Salesperson **shall not disclose or use any confidential information** relating to the client
2. Unless the disclosure or use is made with the **consent of the client** or is otherwise allowed by the law.
3. Disclosure may be made only to the **appropriate person** and only to the extent authorised and extent necessary for the permitted purpose.

PSM 3.8 Statements made to other parties and material fact

Salespersons must find out and disclose following information:

- i. **Loan shark harassment;**
- ii. **Bankruptcy issues;**
- iii. **Recent death from unnatural causes in the property;**
- iv. **Divorce proceedings;**
- v. Any defect that would materially affect the property value or its suitability to be used for the purpose for which it is being acquired as a dwelling, e.g. pests, infestations, damages like spalling concrete and water leakages, and other possible hazards such as environmental hazards or natural disasters;
- vi. Unauthorised additions, structures, alterations or renovations;
- vii. Whether any caveats have been lodged; and
- viii. For HDB resale flats, the minimum occupation period.

the newpaper

NEWS SPORTS ENTERTAINMENT LIFESTYLE RACING

POPULAR: COURT & CRIME | Food & Drink

SINGAPORE

Two charged with murder after three people killed over weekend

Ang Mo Kio victim was former policeman; bruises were seen on face and arms of accused in Commonwealth Avenue case

Tatiana Mohamad Resli
Oct 29, 2019 06:00 am

484 Engagements

Three people were killed in two separate incidents on Sunday.

Yesterday, Wang Shuzhen, 54, and Gabriel Lien Goh, 22, were charged in court with murder. If convicted, they face the death penalty.

The first incident allegedly occurred at between 5am and 6am on Sunday at Block 633 Ang Mo Kio Avenue 6.

Wang, a Chinese national, is accused of killing Mr Teh Hock Pine, who The New Paper



(From left) Wang Shuzhen is accused of killing a 63-year-old man. Gabriel Lien Goh allegedly killed a 56-year-old and is a suspect in another death. TNP PHOTOS: KEVIN LIM

Code of Practice For Estate Agents

No.	Items
1	Management and supervision
2	Estate agent card
3	Claims and complaints
4	Retention of documents and records

1. Management and supervision

Estate Agents shall have in place and document in writing proper systems and processes:

- a) to ensure that their RES acquire and have the estate agency work knowledge and
- b) management and supervision of business and salesperson
- c) shall vet all publicity and advertising materials of their salesperson prior to publication.

2. Estate Agent Card

- a) Estate Agents must issue an identification card labeled as an estate agent card to each and every one of their salespersons.
- b) Estate agent card shall be in the form and specifications as required by CEA.
- c) No person shall be issued with more than one estate agent card at any time.
- d) Estate Agents must maintain proper records of all estate agent cards issued.

3. Claims and Complaints

Estate Agent must have:

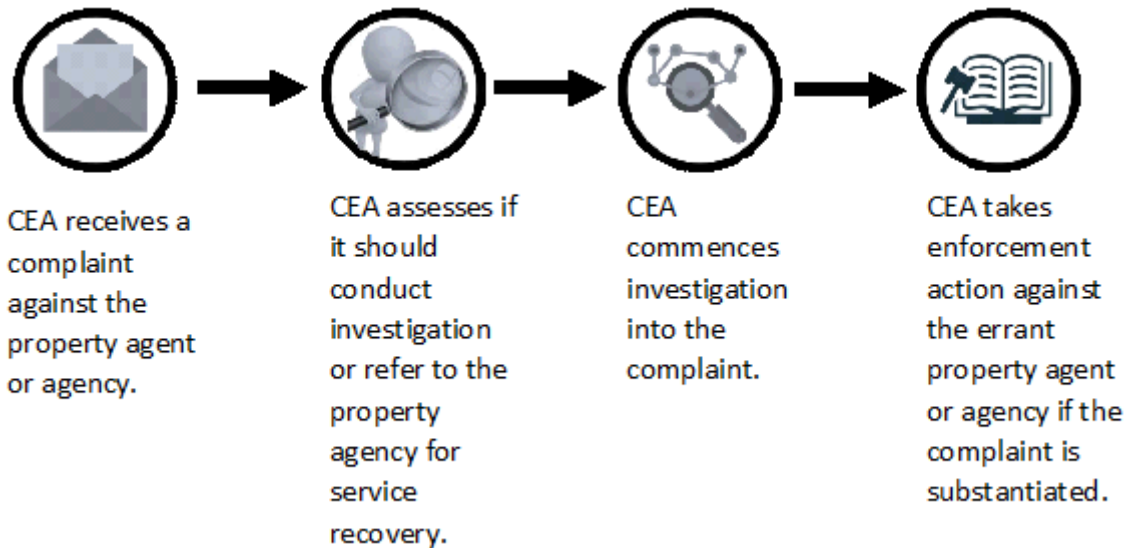
- a) A system for [receipt and investigation of claims and complaints](#) against estate agent or salespersons.
- b) System and processes must be documented in [writing](#)
- c) All claims and complaints must be investigated and a [report](#) submitted **within 2 weeks** or such longer time as the Council may allow
- d) [Meet with the complainant](#) to explore the possibility of an amicable resolution.
- e) [Expediently informed complainant](#) the outcome of the investigation.

4. Retention of documents and records

Estate Agent must retain documents originals or copies ([electronic form](#)) for [at least 5 years](#)

- a) Applications for licence and registration of salespersons
- b) Estate agency agreements
- c) Documents relating to property transactions including:
 - i. [sale and purchase agreements and options to purchase](#);
 - ii. lease and lease agreements and letters of intent to lease;
 - iii. [Housing and Development Board documents and forms, including Resale Checklists and approvals for the sub-letting of Housing and Development Board flats](#);
 - iv. [documents evidencing the receipt and payment of transaction monies](#);
 - v. [powers of attorney and letters of authorisation and](#)
 - vi. [declarations made by estate agents or salespersons of any conflict or potential conflict of interests](#); and
- d) all documents and correspondence in respect of claims or complaints, including the result of investigations and any action taken

CEA Disciplinary Process



1. The new **Letter of Censure** (LOC) disciplinary regime is one of the key amendments under the Estate Agents (Amendment) Act 2020, which was operationalised on 30 July 2021.
2. Under this new regime, CEA can issue **LOCs** and **impose financial penalties of up to \$5,000 per case** against errant real estate salespersons (RESs) and estate agents (EAs) for minor disciplinary breaches.

CEA Disciplinary Process



	Potential offence		Potential disciplinary breach		
Investigation outcomes	Commission of offences under the EAA or its subsidiary legislation.		Breach of the EAA or its subsidiary legislation that are not offences [e.g. Estate Agents (Prevention of Money Laundering and Financing of Terrorism) Regulations 2021, CEPCC or COPEA].		
Enforcement actions	Court prosecution 	Other regulatory or administrative actions	CEA DC proceedings (serious breach) 	LOC disciplinary regime (minor breach) 	Other administrative action
	Courts may convict and impose a fine and/or imprisonment, up to the maximum prescribed statutory limits for the offence.	- CEA may offer composition in lieu of criminal prosecution (for compoundable offences). - CEA may issue warning or reminder letters. - CEA may revoke licence or registration.	- DC may revoke or suspend registration or licence, or impose or vary registration or licence conditions. - In addition, DC may impose financial penalty of up to \$100,000 (for property agents) and \$200,000 (for property agencies) per case. - DC may admonish or reprimand the offender in writing.	- CEA may issue warning letter or LOC. - In addition, CEA may impose financial penalty of up to \$5,000 per case.	CEA may issue reminder letter.

Dispute Resolution Scheme

Dispute* which between a client & licensed estate agent;



Approach

*estate agency agreement

Note:

1. If action is initiated by the estate agent, the client can opt not to proceed with the mediation or the arbitration. Client may also choose to opt directly for arbitration without having to go for mediation first.
2. Estate agent and salesperson must attend every hearing of a dispute resolution proceeding
3. Estate agent or salesperson shall remain liable to further investigation or disciplinary action notwithstanding that any dispute resolution proceeding may be pending, in progress or completed
4. Recommends Mediation → Arbitration

CEA Mediation Sub-Scheme

1. Consumers Association of Singapore
2. Singapore Mediation Centre
3. Singapore Institute of Surveyors & Valuers

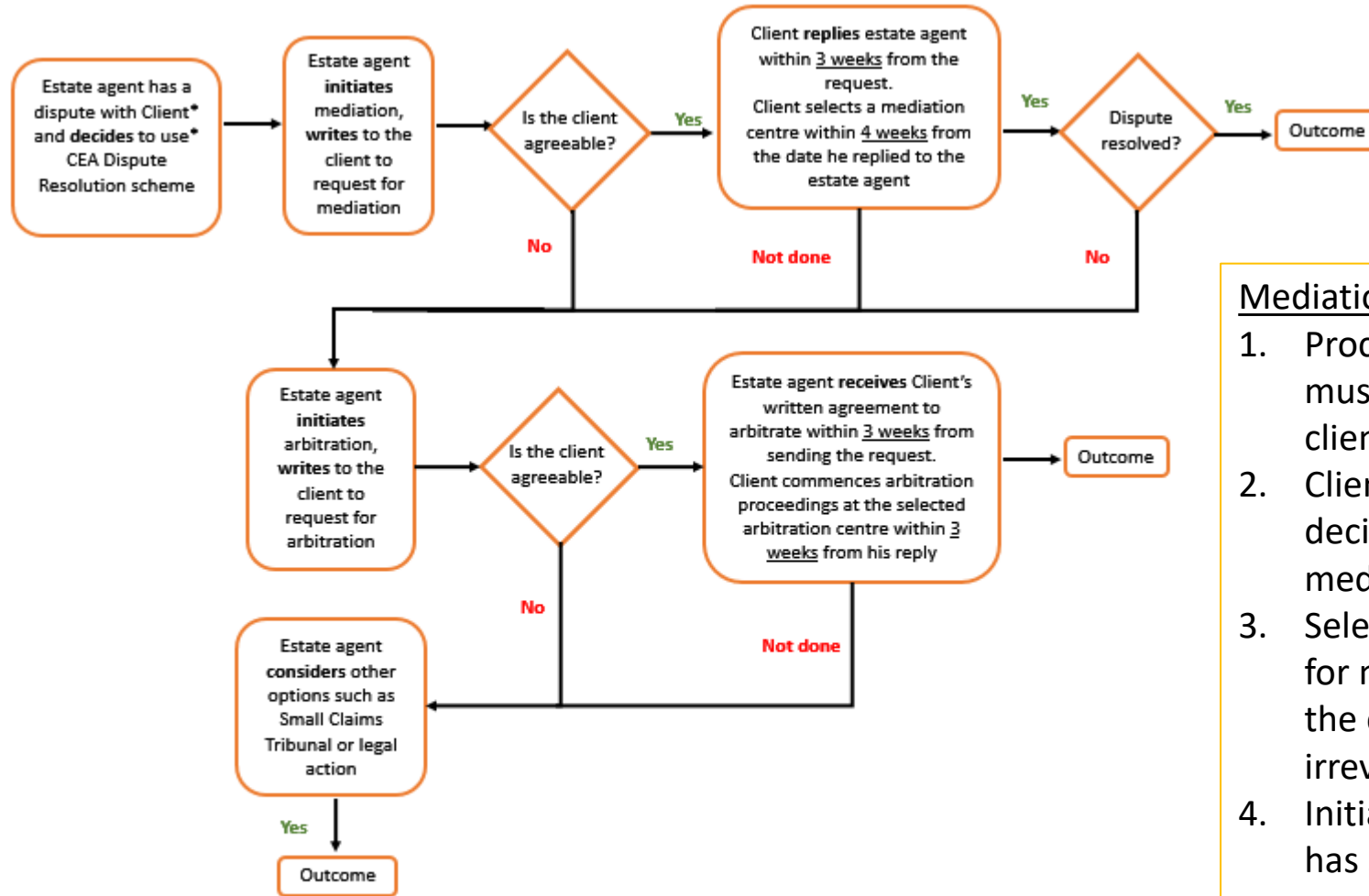
Either party (i.e. the client or estate agent) can initiate mediation. Whether the client or the estate agent initiates the mediation, **the selection of the mediation centre will be by the client.**

CEA Arbitration Sub-Scheme

1. Singapore Institute of Arbitrators
2. Singapore Institute of Surveyors & Valuers

If the parties (i.e. the client and estate agent) fail to reach a settlement through mediation, either party can initiate arbitration. The parties can proceed to arbitration at the approved arbitration centre as **selected by the client for a resolution of the dispute**

Initiate by Estate Agent



Mediation

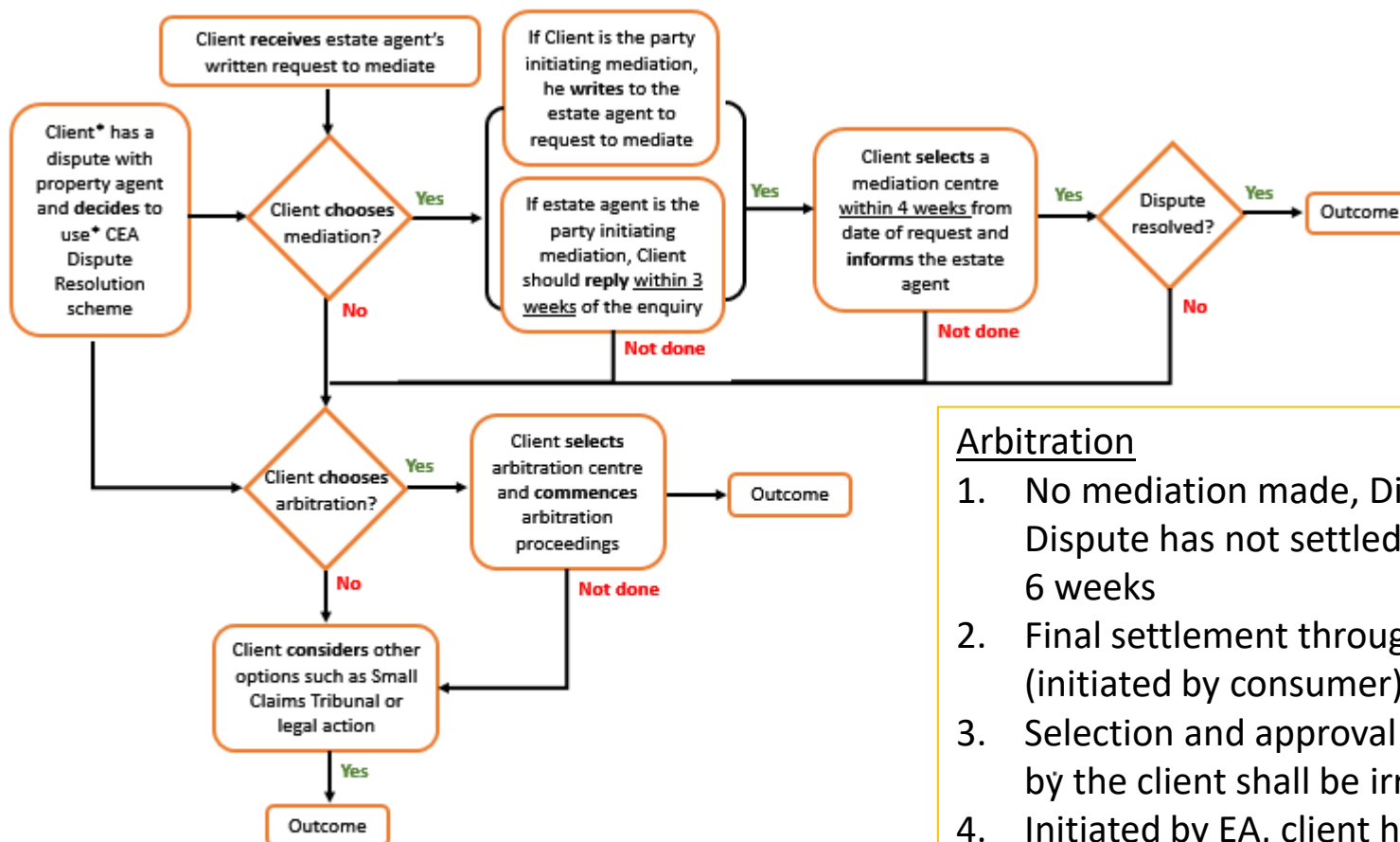
1. Proceed mediation must be in writing by client
2. Client has 4 weeks to decide to choose the mediation centre
3. Selection and approval for mediation centre by the client shall be irrevocable
4. Initiated by EA, client has 3 weeks to respond

*Note:

- A client is a person who has signed a relevant estate agency agreement with a licensed estate agent.
- Only clients who have signed the relevant estate agency agreement, an estate agency agreement signed on or after 1st January 2011 in the form prescribed under the Estate Agents (Estate Agency Work) Regulations 2010) can use CEA's Dispute Resolution Scheme.

Dispute Resolution Scheme

Initiate by Consumer



Arbitration

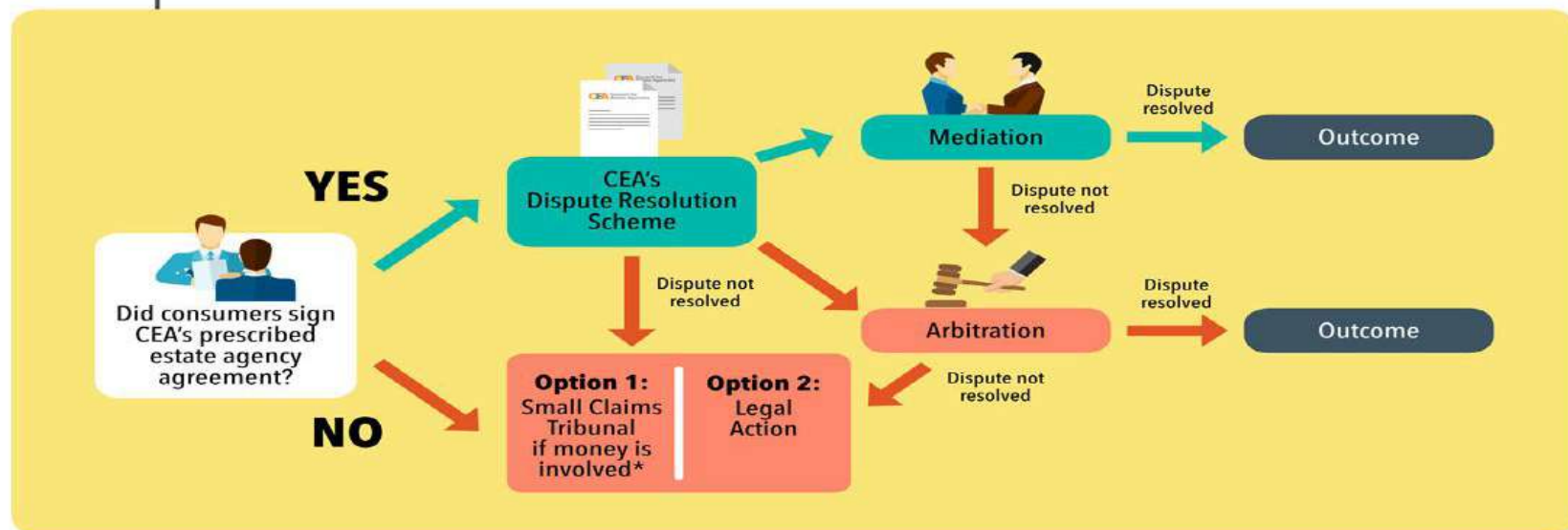
1. No mediation made, Dispute unresolved or Dispute has not settled during mediation by 6 weeks
2. Final settlement through arbitration (initiated by consumer)
3. Selection and approval for arbitration centre by the client shall be irrevocable
4. Initiated by EA, client has 3 weeks to respond → No response, No arbitration

*Note:

- A client is a person who has signed a relevant estate agency agreement with a licensed estate agent.
- Only clients who have signed the relevant estate agency agreement, an estate agency agreement signed on or after 1st January 2011 in the form prescribed under the Estate Agents (Estate Agency Work) Regulations 2010) can use CEA's Dispute Resolution Scheme.

WHAT IS NOT UNDER CEA'S PURVIEW

THE ESTATE AGENTS ACT DOES NOT EMPOWER
CEA TO RESOLVE THE FOLLOWING:



63*Note: The Small Claims Tribunal hears claims for the purchase of goods and services for amounts not exceeding \$10,000, or \$20,000 if both parties agree to it. Disputes arising from residential lease contracts exceeding two years, leases of non-residential properties, etc. are excluded from its jurisdiction.

Costs - Dispute Resolution Scheme

Mediation

- Estate Agent and consumer each pay 50%

Arbitration

- Estate Agent pays minimum 50%; consumer pays maximum 50%.
- Actual apportionment to be determined by arbitrator.
- Arbitrator has discretion to order consumer to pay up to 100% of costs incurred if claim is frivolous, vexatious or an abuse of process.
- Fees for legal representation are payable by respective parties.

More about the costs can be referred to this website:

<https://www cea gov sg /consumers /dispute-resolution>

Appendix

Costs on Dispute Resolution Scheme

Consumers Association of Singapore (CASE)

Mediation Fees

Claim Range	Member (CASE)	Non- Member	Business
Below \$5,000	\$37.45	\$85.60	\$85.60
\$5,000 - \$10,000	\$37.45	\$85.60	\$85.60
\$10,001 - \$20,000	\$53.50	\$128.40	\$128.40
\$20,001 - \$30,000	\$133.75	\$214.00	\$214.00
\$30,001 - \$40,000	\$240.75	\$321.00	\$321.00
Above \$40,000	\$347.75	\$428.00	\$428.00

Singapore Institute of Surveyors & Valuers (SISV) Mediation Fees

Quantum of Claim	Mediation Fees
Below \$15,000	\$200 plus GST per party per 2 hour session
\$15,000 up to \$30,000	\$250 plus GST per party per 2 hour session
Above \$30,000 up to \$60,000	\$350 plus GST per party per 2 hour session
Above \$60,000 up to \$100,000	\$500 plus GST per party per day
Above \$100,000 up to \$250,000	\$800 plus GST per party per day
Above \$250,000 up to \$500,000	\$1,500 plus GST per party per day
Above \$500,000 up to \$1mil	\$2,000 plus GST per party per day
Above \$1mil up to \$2.5mil	\$2,500 plus GST per party per day
Above \$2.5mil up to \$5mil	\$3,000 plus GST per party per day
Above \$5mil	\$3,500 plus GST per party per day

Singapore Mediation Centre (SMC) Mediation Fees



Quantum of Claim	Mediation Fees
Below \$30,000	\$600
\$30,001 to \$100,000	\$2,300
Above \$100k up to \$250k	\$1,200 per party per day
Above \$250k up to \$500k	\$1,800 per party per day
Above \$500k up to \$1mil	\$2,200 per party per day
Above \$1mil up to \$2.5mil	\$2,600 per party per day
Above \$2.5mil up to \$5mil	\$2,800 per party per day
Above \$5mil	\$2,900 per party per day plus pro-rated portion of 0.05% of the quantum above \$5mil

Singapore Institute of Arbitrators Arbitration Fees

Disputed Sum**	Arbitration Fees
Up to \$60k (Documents-only)	Admin fee of \$750 + arbitrator's fees of 20% of the sum in dispute, subject to a minimum of \$1,000 and a maximum of \$2,500
Above \$60k (Documents-only)	Admin fee of \$2,000 + arbitrator's fees of 10% of the sum in dispute, subject to maximum of \$25,000
Above \$1,000,000 (Documents-only)	Admin fee of \$3,000 + arbitrator's fees of \$25,000 plus 0.5% of the sum in dispute above \$1,000,000, subject to a fee cap of \$50,000
Up to \$60k (where hearing is conducted)	Admin fee of \$750 + arbitrator's fees of 40% of the sum in dispute, subject to a minimum of \$2,000 and a maximum of \$5,000
Above \$60k (where hearing is conducted)	Admin fee of \$2,000 + arbitrator's fees of 20% of the sum in dispute, subject to maximum of \$50,000
Above \$1,000,000 (where hearing is conducted)	Admin fee of \$3,000 + arbitrator's fees of \$50,000 plus 0.5% of the sum in dispute above \$1,000,000, subject to a fee cap of \$100,000.

Singapore Institute of Surveyors & Valuers (SISV) Arbitration Fees

Disputed Amount***	Arbitration Fees
Up to \$60k (Documents-only)	Admin fee of \$500 + arbitrator's fees of \$1,000
\$60,001 to \$80,000 (Documents-only)	Admin fee of \$500 + arbitrator's fees of \$3,000
\$80,001 to \$150,000 (Documents-only)	Admin fee of \$500 + arbitrator's fees of \$5,000
\$150,001 to \$200,000 (Documents-only)	Admin fee of \$500 + arbitrator's fees of \$6,500
Above \$200k (Documents-only)	Admin fee of \$500 + arbitrator's fees of \$6,500 plus [5%] of the amount above \$200,000, subject to cap of \$23,000
Up to \$60k (where hearing is conducted)	Admin fee of \$500 + arbitrator's fees of \$3,500
\$60,001 to \$80,000 (where hearing is conducted)	Admin fee of \$500 + arbitrator's fees of \$5,000
\$80,001 to \$150,000 (where hearing is conducted)	Admin fee of \$500 + arbitrator's fees of \$7,500
\$150,001 to \$200,000 (where hearing is conducted)	Admin fee of \$500 + arbitrator's fees of \$8,500
Above \$200,000 (where hearing is conducted)	Admin fee of \$500 + arbitrator's fees of \$8,500 plus [5%] of the amount above \$200,000, subject to cap of \$25,000